

Abhimanyu Singh v. State of U.P. & 7 Others

Allahabad High Court · Division Bench · 9 April 2026 · 2026 SCC OnLine All 5411 · Writ - C No. 10937 of 2026 · **Writ petition disposed of with directions on the fresh estimate and supply**

HEADNOTE

On the cost of extending a new connection under the U.P. Electricity Supply Code, 2005, direct transmission from the distribution main to the point of supply is at the licensee's cost; but where a third party's objection (here neighbours asserting the applicant's property is landlocked) requires the licensee to adopt an alternate/longer route, the cost differential is to be borne by the applicant (Clause 4.5(d)). Where the applicant first opted to do the work himself (attracting only supervision charges under Clause 4.6(e)) and then asked the licensee to give the supply, a revised estimate follows. The licensee was directed to furnish particulars of the cost of the direct route and of the longer route necessitated by the objection, demand only the differential, adjust any excess already deposited against future bills (or collect any shortfall), and give the supply within two weeks.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.5(d)

Alternate-route cost differential on a third-party objection is borne by the applicant

QUESTION

Who bears the extra cost when a third party's objection forces the licensee to route a new supply line along a longer/alternate route?

HOLDING

Direct transmission from the distribution main to the point of supply is at the licensee's cost. Under Clause 4.5(d), where the supply line would go over a third party's property and an objection requires an alternate route, the applicant must obtain the no-objection or bear the cost differential of the different route. The licensee must furnish particulars of the cost of the direct and the longer route, and demand only the differential; any excess already deposited is adjusted against future bills, and the supply given within two weeks. ¶ 2-5

LIMITING FACTS

Applicant initially opted to establish the connection himself (only supervision charges under Clause 4.6(e)(ii)), then sought supply from the licensee; neighbours objected that the property is landlocked.

PRINCIPLE TAGS

clause-4.5d-landowner-objection-to-supply-line When a third party objects to a supply line over its property, the applicant must obtain the no-objection or bear the cost differential of the alternate route; the direct-route cost is the licensee's. ¶ 3-4